

SUPERIOR COURT OF CALIFORNIA, CONTRA COSTA COUNTY
PR - MARTINEZ-WAKEFIELD TAYLOR COURTHOUSE
COURT CALENDAR FOR AUGUST 27, 2026
DEPARTMENT 38
JUDICIAL OFFICER: BARBARA C. HINTON

PROBATE EXAMINER NOTES-SUBJECT TO REVISION AFTER REVIEW
BY THE JUDGE

Unless the Court directs otherwise, appearances by counsel and parties in Department 38 may be made as follows:

- **In Person**
- **Remotely through Zoom Videoconferencing**

Zoom videoconferencing for Department 38, Judge Hinton:

[Court Calendars](#) | [Superior Court of California](#) | [County of Contra Costa](#)

IF YOU HAVE MATTERS IN BOTH
DEPARTMENT 30 AND DEPARTMENT 38,
PLEASE NOTIFY THE BAILIFFS
THE MORNING OF YOUR APPEARANCE.

THANK YOU.

SUPERIOR COURT OF CALIFORNIA, CONTRA COSTA COUNTY
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1. **MSP18-00669 MATTER OF: THE KENNETH POLIO SPECIAL NEEDS TRT**
9:00 AM HEARING IN RE: 5TH ACCOUNT & REPORT OF TRUSTEE OF THE KENNETH POLIO SPECIAL NEEDS
TRUST, PETITION TO SETTLE ACCOUNT; TO CONFIRM TRUSTEE FEES & TO FIX & ALLOW ATTORNEY
FEES & COSTS FILED BY FREMONT BANK ON 4-30-26.

Petition Approved
Proposed Order Submitted
No Appearance Required

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2. **MSP21-00698** **ESTATE OF: CARMEN S NAZARETA**
9:00 AM HEARING IN RE: PETITION FOR DETERMINATION OF HEIRS, AND SUCCESSORS THERETO, ENTITLED TO
NOTICE AND DISTRIBUTION FILED ON 02/04/25 BY TERESA NAZARETA PAYSINGER

Need:

1. Appearances to report status
2. Proposed Order

Note: Stipulated Settlement Agreement and Order filed 4-17-2026.

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3. **P23-01467** **MATTER OF: THE MELVIN KAHN REVOCABLE TRUST DATED APRIL 13, 2019**
9:00 AM HEARING IN RE: STIPULATION TO REFEREE OR TRIAL SETTING

Need appearances for update on meet and confer to appoint referee.

Note: Stipulation for Order Appointing Referee filed 6/12/2026

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4A. **P25-00528** **MATTER OF: THE LAING FAMILY TRUST, DATED JULY 14, 2017**
9:00 AM HEARING IN RE: PETITIONER AND TRUSTEE, KATHLEEN SCHOENING'S MOTION TO QUASH FILED
10/03/2025.

Need appearances

Note: Notice of Settlement of Entire Case filed 8/7/2026

4B. **P25-00528** **MATTER OF: THE LAING FAMILY TRUST, DATED JULY 14, 2017**
9:00 AM HEARING IN RE: PETITION FOR REMOVAL OF TRUSTEE AND APPOINTMENT OF SUCCESSOR TRUSTEE
FILED BY ROBERT LANG ON 08/21/2025 *** CONTINUED PER STIPULATION

Need:

1. Appearances
2. Proof of service in the manner provided in CCP § 415.10 (30 days personal service) or CCP § 415.30 (30 days proof of mailing with Notice and Acknowledgment of Receipt) on each person having title to or possession of, the property. PrC § 851(a)(2)
3. Proposed Order

Note: Notice of Settlement of Entire Case filed 8/7/2026.

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4C. 9:00 AM	P25-00528 MATTER OF: THE LAING FAMILY TRUST, DATED JULY 14, 2017 HEARING IN RE: PETITION FOR INSTRUCTIONS; TO TRUSTEE TO SELL TRUST OWNED REAL PROPERTY, TO MAKE DISTRIBUTIONS, RETAIN RESERVE, BRESLIN ORDER THAT ALL BENEFICIARIES ATTEND MEDIATION FILED ON 03/25/25 BY KATHLEEN SCHOENING *** CONTINUED PER STIPULATION Need: 1. Appearances 2. Proposed Order Note: Notice of Settlement of Entire Case filed 8/7/2026
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4D. 9:00 AM	P25-00528 MATTER OF: THE LAING FAMILY TRUST, DATED JULY 14, 2017 HEARING IN RE: TRUSTEE, KATHLEEN SCHOENING'S FIRST AMENDMENT TO PETITION FOR INSTRUCTIONS: FILED ON 12/02/2025 *** CONTINUED PER STIPULATION Need appearances Note: Notice of Settlement of Entire Case filed 8/7/2026
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| 8.
9:00 AM | P25-01140 ESTATE OF: SALLY NORDWALL
HEARING IN RE: REPORT OF ADMINISTRATION AND PETITION FOR SETTLEMENT OF FIRST AND FINAL ACCOUNT; AND PETITION FOR REIMBURSEMENT OF EXPENSES ADVANCED, FOR ALLOWANCE OF STATUTORY COMPENSATION FOR SERVICES RENDERED, AND FOR FINAL DISTRIBUTION FILED BY SUSAN K STARR- WEINBERGER ON 5-1-26.

Need:
<ol style="list-style-type: none">1. Verified declaration by petitioner to state whether notice was given, or needed, to Dept. of Health Care Services as to predeceased spouse. PrC § 215, 9202(a); i.e., did predeceased spouse receive Medi-Cal benefits?2. Revised, proposed Order to include a specific list of assets on hand for distribution and approximate amount of cash to be distributed to beneficiary.
LR 7.301 |
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| 9.
9:00 AM | P25-01527 ESTATE OF: LINDA AMBROSE
HEARING IN RE: FIRST AND FINAL REPORT OF EXECUTOR; PETITION FOR ALLOWANCE OF STATUTORY FEES; AND PETITION FOR FINAL DISTRIBUTION ON WAIVER OF ACCOUNTING FILED BY PAUL AMBROSE ON 5-1-26.

Need:
<ol style="list-style-type: none">1. Verified declaration by petitioner to include current addresses of trust beneficiaries so court can confirm mailing. LR 7.1122. Verified declaration by petitioner to specify how attorney's fees will be paid. There is no cash on hand.3. Revised, proposed Order to specify how attorney's fees will be paid and to delete language at page 3, ¶ 8 re: closing letter. No estate tax return was filed. A judgment, decree or order must be complete in itself. LR 7.110 |
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10.

9:00 AM

P25-02152 MATTER OF: GRACE MALFITANO LIVING TRUST

HEARING IN RE: PETITION TO INVALIDATE TRUST ON THE BASIS OF UNDUE INFLUENCE AND/OR LACK OF MENTAL CAPACITY; TO DETERMINE TO WHOM PROPERTY SHALL PASS; FOR FINANCIAL ELDER ADULT ABUSE' AND RETURN OF TRUST PROPERTY AND RECISSION OF DEEDS FILED ON 12/02/25 BY GRACE MALFITANO

Need:

1. Appearances to report status of settlement
2. Proof of service in the manner provided in CCP § 415.10 (30 days personal service) or CCP § 415.30 (30 days proof of mailing with Notice and Acknowledgment of Receipt) on each person having title to or possession of, the property. PrC § 851(a)(2)
3. Proposed Order

Notes:

1. Order Approving Settlement Agreement filed 8-7-2026.
2. Order Confirming Trust Assets filed 8-7-2026.

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11.

9:00 AM

P26-00098

ESTATE OF: ALLEN ROBERT SCHAAF

HEARING IN RE: PETITION FOR PROBATE OF WILL AND FOR LETTERS TESTAMENTARY WITH IAEA
FILED ON 01/22/26 BY ORIANA SCHAAF

Petitioner, daughter, still must do the following:

1. Appear at the hearing
2. File Proof of Publication. PrC § 8120
3. Have a Notice of Petition to Administer Estate Form DE-121 and copy of petition mailed to all persons entitled to receive notice and file a Proof of Service with court. PrC § 8100; LR 7.151(e)
4. File a verified declaration by petitioner to include Attachment 3.f.(2) (copy of will), not attached as indicated. PrC § 8002
5. File Proof of Subscribing Witness Form DE-131. PrC § 8220.
6. Submit Order for Probate Form DE-140

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12.	P26-00552	MATTER OF: THE DAPHNE R MERRITT REVOCABLE LIVING TRUST DATED JULY 22, 1994
9:00 AM	HEARING IN RE: PETITION TO REMOVE DAVID HECKENLIVELY AS SUCCESSOR TRUSTEE OF THE DAPHNE B MERRITT REVOCABLE LIVING TRUST DATED 7-22-94, DUE TO SELF-DEALING & FOR APPT OF MATTHEW HECKENLIVELY AS SUCCESSOR TRUSTEE FILED BY MATTHEW HECKENLIVELY ON 5-4-26	
	-- See also Line # 13 --	
	Matter continued to 12/15/2026 pursuant to Stipulation and Order filed 8/12/2026	

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13.	P26-00553	MATTER OF: DURABLE ADVANCE HEALTHCARE DIRECTIVE AND POA OF DAPHNE R MERRITT
9:00 AM	HEARING IN RE: PETITION BY TEMP AGENT UNDER POWER OF ATTY MATTHEW HECKENLIVELY TO REMOVE DAVID HECKENLIVELY AS AGENT UNDER POWER OF ATTY FOR FINANCIAL TRANSACTIONS & POWER OF ATTY UNDER THE ADVANCE HEALTHCARE DIRECTIVE DUE TO BREACH OF FIDUCIARY DUTIES, FINANCIAL ELDER ABUSE FILED BY MATTHEW HECKENLIVELY ON 5-4-26.	
	-- See also Line # 12 --	
	Matter continued to 12/15/2026 pursuant to Stipulation and Order filed 8/12/2026	

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14.	P24-00535	MATTER OF: LOWELL D. SEWELL AND ELLA M. SEWELL REVOCABLE LIVING TRUST, DATED MARCH 27, 2008, AS RESTATED JULY 13, 2016
1:30 PM	COURT TRIAL HEARING	
	Need appearances	

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15. 9:00 AM	P23-00063 CALENDAR MORE TRIAL DATES	ESTATE OF: KUANG-CHO CHIANG
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Need appearances